

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-000007

DAVID WALLS, SARA WALLS, NATHANIEL WALLS
and ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

MOTION FOR DEFAULT JUDGMENT FOR POSSESSION OF PREMISES

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel and moves this Honorable Court to grant a Default Judgment for possession of the Defendants, DAVID WALLS, SARA WALLS, NATHANIEL WALLS and ANY UNKNOWN PARTY(s) IN POSSESSION, for possession of the subject premises and in support of this motion states:

1. Plaintiff has brought an action for possession of residential premises in a mobile home park pursuant to Fla. Stat. §723.061, for damages and for other relief.
2. Plaintiff has served Defendant, DAVID WALLS, via personal service on January 4, 2025, and SARA WALLS, NATHANIEL WALLS and ANY UNKNOWN PARTY(s) IN POSSESSION by posting on January 8, 2025 after complying with Fla. Stat. §48.184 (summons of unknown party in possession evidences two attempts at service, during business hours and after business hours, and posting thereafter).
3. The summonses served upon the Defendants require the Defendants to file a pleading responsive to the complaint, pay the accrued rent into the registry of the court and to request determination of the rent owed, by February 3, 2025. A copy of the summonses with service are incorporated into this motion as "Exhibit A".

4. On January 10, 2025, Defendant, DAVID WALLS filed a responsive pleading listing reasons that she should not be forced to move, but did not pay mandatory rent into the Registry of the Court, which is an absolutely mandatory obligation to prevent a default.
5. Thereafter, Defendants SARA WALLS and NATHANIEL WALLS filed a response on or about February 11, 2025.
6. A judgment for possession should be entered in this cause because the time for the Defendants to both dispute the claim and pay rent into the Registry of the Court expired on February 3, 2025.
7. The tenant failed to pay the amount of disputed rent into registry of the court. Upon the Defendants' failure to pay the entire sum ordered into the registry of the Clerk of Court or any monthly payment pursuant to this, the defenses and motions of the Defendant are now deemed denied pursuant to Fla. Stat. §723.063 which reads:

"In any action by the park owner or a mobile home owner brought under subsection (1), the mobile home owner shall pay into the registry of the court that portion of the accrued rent, if any, relating to the claim of material noncompliance as alleged in the complaint, or as determined by the court. The court shall notify the mobile home owner of such requirement. The failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default."

and the Plaintiff shall be entitled to an immediate judgment for possession for the premises pursuant to Fla. Stat. §723.062.

7. According to the complaint, the Defendants are not merely one month in arrears; as of the month of December, which has expired, the defendants were three months in arrears.

8. Based upon the allegations of the complaint, including the months of January and February of 2025 but not including late fees, filing fees, service of process and accrued attorney fees, the Defendants owe \$4,071.37.
9. The Defendants did not ever seek a determination of rent owed.
10. A proposed judgment for possession is incorporated into this Motion and attached as "Exhibit B". The writ of possession shall not take effect until ten days after the granting of the Judgment for Possession.

Wherefore the Plaintiff moves this Honorable Court for an Order granting it a writ of possession for the subject property, and to reserve on the other issues in the complaint.

RESPECTFULLY SUBMITTED this 25th day of February, 2025.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Default Judgment for Possession of Premises has been furnished by U.S. Mail to DAVID WALLS, SARA WALLS, NATHANIEL WALLS and UNKNOWN PARTY(s) IN POSSESSION(s) at their last known address of 900 9th Avenue East, Lot #21, Palmetto, FL 34221 this 25th day of February, 2025.

/s/ William C. Price, III
William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
pleadings@wcpricelaw.com
Attorney for Plaintiff